

Court No. - 21

Case :- WRIT - C No. - 63216 of 2014

Petitioner :- Chandra Shekhar Tiwari

Respondent :- U.P. Power Corporation Thru' Its M.D. & 3 Others

Counsel for Petitioner :- A.K. Tripathi, Desh Raj Garg

Counsel for Respondent :- Krishna Agrawal

Hon'ble Dinesh Maheshwari, J.

Hon'ble Yashwant Varma, J.

Counsel for the parties pray for and are granted time to complete their instructions.

List this matter tomorrow i.e. 27.11.2014, as fresh.

Order Date :- 26.11.2014

Sharad

(Yashwant Varma, J.)

(Dinesh Maheshwari, J.)

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Counsel for Petitioner :- A.K. Tripathi, Desh Raj Garg

Counsel for Respondent :- Krishna Agrawal

Hon'ble Dinesh Maheshwari, J.

Hon'ble Yashwant Varma, J.

List this matter as fresh on 01.12.2014.

Order Date :- 27.11.2014

LA/-

(Yashwant Varma, J.)

(Dinesh Maheshwari, J.)

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Hon'ble Dinesh Maheshwari, J.

Hon'ble Yashwant Varma, J.

The petitioner has filed this writ petition stating grievance of being deprived of electricity connection and has taken various grounds in this writ petition.

Learned counsel for the respondents after taking instructions submitted that there had been serious question of electricity theft involved in this matter, but irrespective of other aspects, the respondents would be willing to provide electricity connection to the petitioner upon his making payment of an amount of Rs. 56,279/-, comprising of the electricity dues until 17.10.2014 and provisional assessment for theft.

Learned counsel for the petitioner submits that though the petitioner has been willing to make payment of a reasonable charges, but seeks to contest the disputed amount as suggested on behalf of the respondents.

Having regard to the circumstances, the petitioner is permitted to take recourse to appropriate remedy in accordance with law, including raising of grievance before the Consumer Dispute Redressal Forum constituted under Clause 7.10 of the U.P. Electricity Supply Code, 2005.

Upon the petitioner taking up any such proceedings, it would be expected of the Forum concerned to deal with the matter expeditiously and in accordance with law.

This writ petition stands disposed of accordingly.

Order Date :- 8.12.2014

Sharad

(Yashwant Varma, J.)

(Dinesh Maheshwari, J.)